Brazoria County District Court

Cause No. 2023-CV-0044

Lindsey Walker, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	September 4, 2023
Plaintiff's counsel:	Carlos Fox, Carter & Smith Injury Lawyers

PARTIES

Plaintiff Lindsey Walker is an individual residing in Texas who was operating a passenger vehicle at the time of the collision described below. Defendant is the automobile liability insurer that issued the policy under which Plaintiff seeks benefits and against which this petition is brought. Defendant may be served through its registered agent for service of process in the State of Texas.

FACTS

On February 27, 2023, Plaintiff was driving through a signalized intersection in Houston when another motorist entered the intersection and struck the driver's side of Plaintiff's vheicle in a side-impact collision. The force of the impact pushed Plaintiff's vehicle sideways and caused the airbags to deploy. Plaintiff reported the collision promptly, provided the required information, and submitted a claim under the applicable coverage. Defendant has not paid the claim in an amount sufficient to cover Plaintiff's losses, and Plaintiff has been forced to pursue this action.

NEGLIGENCE

The at-fault motorist failed to yield the right of way and failed to keep a proper lookout before entering the intersection. Defendant, as the insurer responsible for the coverage at issue, failed to investigate the claim in a reasonable and prompt manner, failed to communicate a reasonable explanation for its position, and failed to pay beneifts owed under the policy once liability became reasonably clear. These acts and omissions vioalte the Texas Insurance Code and constitute a breach of the insurance contract and of the duty of good faith and fair dealing.

DAMAGES

As a direct result of the collision, Plaintiff suffered a serious ijnury to the shoulder that required medical evaluation and ongoing treatment. Plaintiff has incurred medical expenses, lost wages, and diminished capacity to work and perform daily activities, and will likely continue to experience pain and limitation in the future. Plaintiff seeks recovery of policy benefits, statutory damages, interest, court costs, and attorney's fees, and requests judgment in the aomunt of $222,000.00.